SETTLEMENT AGREEMENT

made under section 203 of the Employment Rights Act 1996 and related legislation

EXECUTION VERSION

THIS AGREEMENT is dated 17 April 2025

PARTIES

1. Ashbourne Healthcare Group Limited (company number 06842211) whose registered office is at Kingsmead House, 47 Priory Road, Reading RG1 4NP (the "Company"); and
2. Dr Rebecca Anne Whitmore of 14 Cranmer Gardens, Wokingham RG40 2LS (the "Employee").

Background

2.1 The Employee's employment terminated by reason of redundancy on 20 December 2024 (the "Termination Date").

2.2 The Employee intimated claims of automatic unfair dismissal and detriment on the ground of making protected disclosures (sections 103A and 47B ERA) and ordinary unfair dismissal (the "Intimated Claims"). The Company denies the Intimated Claims and admits no liability. The Parties have agreed to settle on the terms of this Agreement.

1. Termination

2.3 The Employee's employment terminated on the Termination Date. Her statutory redundancy payment and payment in lieu of notice were paid on termination and are inclusive within, and not in addition to, the Termination Payment.

2. Settlement payment

2.4 In full and final settlement of the Intimated Claims and the claims listed in clause 4, and without admission of liability, the Company will pay the Employee a termination payment of £185,000 (the "Termination Payment"). The first £30,000 will be paid without deduction of tax under sections 401 and 403 of the Income Tax (Earnings and Pensions) Act 2003, and the balance subject to deduction of income tax at the appropriate rate.

2.5 The Termination Payment will be made within 14 days of the later of (a) the date this Agreement is signed by both Parties and (b) the date the Company receives the Adviser's certificate.

2.6 The Company will pay £5,000 plus VAT towards the Employee's legal fees in connection with advice on this Agreement, directly to Ashworth Quinn LLP on receipt of an invoice.

3. Tax indemnity

2.7 The Employee will indemnify the Company against any further income tax or employee National Insurance contributions (and related interest, penalties or reasonable costs, save those arising from the Company's default) for which the Company is liable in respect of the Termination Payment, save for amounts already deducted and accounted for by the Company.

4. Settlement of claims

2.8 This Agreement is in full and final settlement of the Intimated Claims and all other claims the Employee has or may have against the Company or any Group Company arising out of or in connection with her employment or its termination, including automatic unfair dismissal (s.103A ERA), detriment for protected disclosures (s.47B ERA), ordinary unfair dismissal, redundancy, wrongful dismissal, unlawful deductions, holiday pay, and discrimination under the Equality Act 2010.

2.9 The waiver does not apply to accrued pension rights, any claim to enforce this Agreement, or personal injury claims not known to the Employee at the date of this Agreement.

5. Independent legal advice

2.10 The Employee received independent advice from Ms Deepa Kovac of Ashworth Quinn LLP as to the terms and effect of this Agreement, in particular its effect on her ability to pursue the settled claims. The Adviser's certificate is at Schedule 1.

6. Confidentiality and non-derogatory statements

2.11 The Parties will keep the existence and terms of this Agreement confidential, save to the Employee's immediate family and advisers, HMRC, to the extent necessary to explain the reason for the ending of her employment to a prospective employer consistently with the agreed reference, and as required by law or regulation (including any disclosure to the Care Quality Commission). Neither Party will make derogatory statements about the other; the Company will instruct its directors and members of its senior leadership team accordingly.

7. Reference and continuing obligations

2.12 The Company will provide the agreed reference at Schedule 2 on request and will not depart from it in substance. The Employee reaffirms her continuing confidentiality obligations and post-termination restrictions.

8. Entire agreement, governing law

2.13 This Agreement is the entire agreement between the Parties on its subject matter, may be executed in counterparts, and upon signature by both Parties and the Adviser becomes open and binding. It is governed by the law of England and Wales, and the Parties submit to the exclusive jurisdiction of the courts of England and Wales and the Employment Tribunals.

Schedule 1 — Adviser’s Certificate

I, Deepa Kovac of Ashworth Quinn LLP, confirm that I am a relevant independent adviser within the meaning of section 203(3A) of the Employment Rights Act 1996; that I have advised Dr Rebecca Anne Whitmore of the terms and effect of this Agreement and in particular its effect on her ability to pursue her rights before an Employment Tribunal; and that there is in force a contract of insurance covering the risk of a claim by her in respect of loss arising in consequence of that advice.

Signed	D. Kovac
Name	Deepa Kovac, Ashworth Quinn LLP
Date	17 April 2025

Schedule 2 — Agreed Reference

Dr Rebecca Whitmore was employed by Ashbourne Healthcare Group Limited from 3 September 2018 to 20 December 2024, latterly as Clinical Governance Lead and Registered Manager of Ferndene Court, responsible for clinical governance, regulatory compliance and the management of the home. She carried out her duties conscientiously and professionally. Her employment ended by reason of redundancy following a restructuring. We wish her well in her future career. This reference is provided in good faith and in confidence, without any assumption of responsibility to the recipient or to Dr Whitmore.

EXECUTED as an agreement:

Signed for and on behalf of Ashbourne Healthcare Group Limited	Iqbal Rahman (signed) Chief Executive — 17 April 2025
Signed by Dr Rebecca Anne Whitmore	R. A. Whitmore (signed) — 17 April 2025